

IN THE DISTRICT COURT OF APPEAL OF FLORIDA, SECOND
DISTRICT

CHRISTOPHER A. HANSON, Petitioner,

v.

SARAH SORGIE HANSON, Respondent.

Case No. to be assigned

L.T. No. 24-DR-001150 (Fla. 13th Cir.)

PETITION FOR WRIT OF CERTIORARI

COMES NOW Christopher A. Hanson, the Petitioner in this certiorari proceeding and the Respondent in the underlying dissolution case, self-represented, and petitions this Court for a writ of certiorari quashing the June 25, 2026 order of the Circuit Court of the Thirteenth Judicial Circuit appointing a guardian ad litem for the parties' minor children. For clarity: in the underlying case (No. 24-DR-001150), Sarah Hanson is the Petitioner and Christopher Hanson is the Respondent; in this certiorari proceeding, Christopher Hanson is the Petitioner and Sarah Hanson is the Respondent. To avoid confusion, the parties are referred to throughout this petition as "Husband" (Christopher Hanson) and "Wife" (Sarah Hanson). The order under review grants Wife's motion, and in that order's caption "Petitioner" refers to Wife.

In support of this Petition for Writ of Certiorari, Husband states:

I. BASIS FOR JURISDICTION

1. Husband seeks certiorari review of the "Order Granting Petitioner's (Wife's) Motion for Appointment of Guardian Ad Litem," rendered June 25, 2026 (App. 1; Doc 337). Art. V, § 4(b)(3), Fla. Const.; Fla. R. App. P. 9.030(b)(2)(A), 9.100.

2. Timeliness. The order was signed and filed with the clerk on June 25, 2026 and was rendered that day. Fla. R. App. P. 9.020(h). This petition is filed within thirty days. Fla. R. App. P. 9.100(c)(1).

3. Husband's Motion for Reconsideration and Vacatur, filed July 6, 2026 (App. 2; Doc 342), remains pending. It does not affect the Court's jurisdiction to grant the relief requested here. Because rehearing is not authorized for a non-final order, the pending motion does not delay rendition or the thirty-day period. *Caufield v. Cantele*, 837 So. 2d 371, 376 n.3 (Fla. 2002).

4. Certiorari is the available vehicle. However, if this Court concludes the order is appealable under rule 9.130, Husband asks that the proceeding be treated as a non-final appeal. Fla. R. App. P. 9.040(c); see *Chan v. Addison*, 386 So. 3d 1033 (Fla. 6th DCA 2024).

5. Husband acknowledges the committee note's caution that "it is extremely rare that erroneous interlocutory rulings can be corrected by resort to common law certiorari." He does not ask this Court to relax that standard.

6. Based solely on the docket below, the order sets in motion an intrusion into the children's lives that cannot be undone. The children have continued to thrive in the equal-timesharing arrangement throughout the last two and a half years of these proceedings. (Apr. 17 Tr. 125:14-17; June 10 Tr. 58:10-11; App. pp. 74, 319.)

II. STATEMENT OF THE CASE AND FACTS

A. The order under review

7. The order under review, rendered June 25, 2026 (App. 1; Doc 337), appoints a guardian ad litem for the parties' two minor children in this dissolution proceeding. Its findings, **quoted in their entirety from the face of the order**, are:

A. Wife is requesting a guardian ad litem to assist the Court with her concerns regarding parenting of the minor children by the Father.

B. Father stated multiple times that he is not a bad parent and in fact, is an excellent parent.

C. The Court believes that it would be in the best interest of the children to have a guardian ad litem to investigate the issues in this case and to provide the Court with some information to aid in its decision-making.

8. The order cites no statute and no rule, identifies no testimony, exhibit, or event, and makes no finding of unfitness or harm. Finding A recites what Wife *requested*; Finding B recites a small part of what Husband *said*; Finding C recites what the court *believes* would assist *the court*.

9. The order does not reach the published material at Doc 169 (App. 24), the guardian ad litem article Husband filed in opposition. The article supports Husband's longstanding concerns about the negative impact a guardian ad litem investigation could have on the children. The order reflects no consideration of that material and no best-interest analysis of any kind.

10. No finding states a fact about either child. How the order came to be entered on such a record is the subject of the facts that follow.

B. From the outset, Husband sought reciprocal financial discovery (Doc 22, May 16, 2024)

11. On **May 16, 2024**, Husband filed Doc 22 (App. 4), titled "Response to Motion to Compel Payments and Motion to Compel Evidence of Marital

Assets and Financial Information." In it, Husband both responded to Wife's motion for expense reimbursement and moved to compel discovery of marital assets. He requested "all statements for all accounts on which [Wife's] name appeared ever since the marriage, October 28, 2016," and stated that he had "offered to provide all statements on all of his accounts during that same period."

12. From that filing forward, Husband's position was that reciprocal financial discovery was the issue in the case and that he needed it to defend the matters later raised against him. He stated that position on the record repeatedly. He maintained it through the concluding session:

"There's that first filing that lays out everything ... why I needed the discovery, why I wanted it done quickly, and why I wanted to keep the children out of it. It's the May of 2024 Docket 22 before I was represented by an attorney." (June 10 Tr. 68:6-12; App. p. 322.)

13. Doc 22 is also the source from which the guardian ad litem motion was later built. At the hearing that produced the order under review, Wife's counsel identified the motion's principal factual predicate as paragraphs 21 and 22 of Doc 22. (Apr. 17 Tr. 120:18–121:08; App. pp. 69-70.) Those paragraphs are Husband's own statements, in that discovery filing, describing his health and course of medical treatment. The motion drew

other quotations from the same filing. The significance is developed in Facts § E and in the Argument. Wife used Husband's own filing as the foundation of her motion, while the relief that same filing sought went unadjudicated.

C. Seven months of silence, then the December 13, 2024 motions

14. Wife served interrogatories early in the case. Husband answered them in full on June 28, 2024, together with his financial affidavit and a certificate of compliance producing his tax returns, pay stubs, and deeds (Docs 33, 34, 35; App. 29).

15. Wife initiated the financial dispute herself. On May 14, 2024, self-represented, she filed a Motion to Compel Payments of Partial Child Expenses and Reimbursement (Doc 17; App. 28). Husband answered two days later and placed reciprocal financial discovery in issue (Doc 22, May 16, 2024; App. 4).

16. Seven months passed after Husband placed reciprocal discovery in issue (Doc 22, May 16, 2024; App. 4). From his June 28 answers through December 12, 2024, Wife filed nothing seeking discovery from Husband: no motion concerning his answers, no request for his medical records, and no examination motion of any kind. From July through September 2024 she filed nothing at all.

17. Then, on a single day, **December 13, 2024**, Wife filed four motions between 7:31 a.m. and 1:45 p.m.: a motion to compel discovery (Doc 67; App. 7), a motion for judicial default (Doc 75; App. 8), a motion for appointment of a guardian ad litem (Doc 69; App. 6), and a motion for psychological examination of Husband (Doc 77; App. 9).

18. The sequence is a matter of docket record, and it is conceded. The four motions were filed on December 13, 2024, the same day as the hearing on the withdrawal of Husband's counsel, which left him unrepresented (over his objection, on a single day's notice). At the concluding June 10 session, over a year and a half later, Wife's counsel confirmed the timing: the motions "were filed in December, prior to the hearing on Vivian Hodz's motion to withdraw. The same day? Yes. But prior to the hearing, not after he quote/unquote 'just lost his attorney.'" (June 10 Tr. 92:8-12; App. p. 336.) Husband contended below that the motions were retaliatory.

19. This Court need not accept that characterization, because the sequence that matters is on the face of the docket. Husband's discovery motion sat unresolved through all of it: filed May 16, 2024, still unresolved when the four motions were filed seven months later, and unresolved through the December 2024 withdrawal of Husband's counsel and his self-representation since.

20. Husband sought the same financial discovery on a second occasion.

On February 28, 2025, he again moved to reopen financial discovery, including the Chase subpoenas (Doc 146; App. 30). His motion put the inference on the record: "There is simply no logical explanation for objecting to voiding an agreement that is costing Wife money other than that Wife has not yet revealed the full story and extent of marital assets." (Doc 146 ¶ 109; App. p. 402.)

21. The dates are not disputed. In October 2023, the parties signed the postmarital agreement, and in that period they agreed to equal timesharing of the children. Husband testified that late 2023 was "really the worst period of my life." (June 10 Tr. 32:15-17; App. p. 309.) Wife raised no concern about his parenting or about the equal timesharing that began when the parties separated.

22. The guardian ad litem motion followed more than a year later, on December 13, 2024 (¶ 17). Its pleaded predicate was Husband's own May 2024 filing (Doc 22 ¶¶ 21–22, describing his health concerns and pleading for the court's timely attention on the core discovery issue; App. pp. 28-29) (Facts § B, ¶ 13). The point is in the sequence. In 2023, during the period Husband testified was the most difficult of his life, and with knowledge of that period, Wife agreed to equal timesharing and raised no concern. In

December 2024, resting on those same statements from months earlier, that health history became the pleaded basis for the appointment. This Court need not draw any inference about motive. The dates are the record.

D. Husband's single objective and single objection

23. For over two years, Husband has maintained one objective: targeted financial discovery. He has maintained one objection: keeping the children out of the conflict. The guardian ad litem motion advanced to a final order over that objection while the discovery he sought went unresolved.

24. Aside from the one objection involving the children, Husband did not resist the inquiries Wife said she wanted; he offered them and she declined. He stated on the record: "I've been offering to go to the psychological evaluation, to the vocational evaluation, and sign medical releases. They don't take me up on it, because they don't want that." (May 29 Tr. 21:7-11; App. p. 423.) Wife's own counsel conceded the records offer: "He has offered to produce those to me. That is true." (Apr. 17 Tr. 121:21-23; App. p. 70.) Husband confirmed he had "already signed releases" for his mental-health records and that he was "more than willing" to attend the vocational evaluation. (Apr. 17 Tr. 46:20-21; May 29 Tr. 172:4-5; App. pp. 58, 163.) He repeated the offer to provide "medical releases and ... a list of all the doctors that I saw." (May 29 Tr. 188:1-2;

App. p. 167.) The offers stood unretracted at the concluding session: he testified to "my willingness to go to evaluations, and my willingness to sign releases." (June 10 Tr. 51:9-11; App. p. 313.) Wife's counsel stated in closing why the offers were not accepted: "We haven't taken him up on these things, because we want a guardian ad litem appointed." (June 10 Tr. 101:2-3; App. p. 339.)

25. Husband's one objection was to an investigation reaching the children. On the record he explained that "all I wanted to do is get out of coming to things like this. And more than anything, keep my kids away from ugliness," and that the children were "thriving and excelling in every aspect of life." (May 29 Tr. 124:22-25; Apr. 17 Tr. 125:14-17; App. pp. 74, 150.) He restated the objection in the same terms at the concluding session: the appointment was "the one thing I asked the Court not to do, which was to intervene with my children," and "I strongly object to the Court proceeding with anything that intervenes with the children." (June 10 Tr. 10:20-21; 24:22-24; App. pp. 295, 306.)

E. Reciprocal discovery went unresolved

26. While Wife initially pressed for discovery of *Husband* (16 pages of interrogatories in May 2024 (Apr. 17 Tr. 67:7-8; App. p. 422), his psychiatric records, and a compelled psychological examination), Husband's own

financial discovery of *Wife*, first sought in Doc 22 in May 2024, was never resolved.

27. Judge Felix is a named defendant, in his official capacity, in *Hanson v. Thirteenth Judicial Circuit Court*, No. 25-CA-010255 (Fla. 13th Cir.), a public-records action Husband brought against the Circuit. The Attorney General has appeared for the defendants in that action, which is presided over by a judge of another circuit sitting by assignment. (App. 15; No. 25-CA-010255, Doc. 65 (Mar. 4, 2026).) The relationship bears directly on the injury this petition concerns: a guardian ad litem's statutory charge is to investigate the children and report to the court. That work product will return for decision to the same tribunal named as a defendant in Husband's separate action.

28. Husband does not seek disqualification in this proceeding, and does not ask this Court to revisit either the trial court's June 10, 2026 order denying disqualification (Doc 331, App. 31; "I denied the motion to disqualify," June 10 Tr. 6:24-25, App. p. 292) or this Court's February 10, 2026 denial of prohibition (No. 2D2026-0279). He does not contend, and does not ask this Court to find, that the trial court was actually biased.

29. He contends instead that this is precisely the posture in which section 61.401's finding requirement must be enforced rather than excused: the required finding is the one check that separates a reasoned best-interest appointment from an unexamined one, and it is the check this order omits. The concern is concrete, not abstract: an investigation of Husband's children was ordered on a record containing no finding about those children.

F. The court's refusal to make findings, including on Husband's constitutional objections

30. The court's refusal to make findings was a stated method. On April 17, 2026, asked to make findings of fact, the court answered:

MR. HANSON: But you haven't. You haven't found any facts on it.

You avoid it. You don't rule on it. You just say I'm going to ignore it.

THE COURT: I can make the ruling without findings of facts, and

if the Second DCA says I need to find facts, then I'll do so. (Apr.

17 Tr. 181:1-8; App. p. 79.)

31. The court applied the same approach to Husband's constitutional objections. Asked whether it would ever make findings regarding those rights, the court answered:

MR. HANSON: ... Are you ever going to find any facts about my constitutional rights?

THE COURT: Are you asking me in the future at some point if I might? Maybe. (May 29 Tr. 52:21–53:15; App. pp. 132-133.)

32. Husband restated the court's position on the record six weeks after it was first stated (that the court "essentially said ... you'll make some findings of fact, if the Second DCA tells you to"), and the court made no response, correction, or denial. (May 29 Tr. 47:14-24; App. p. 129.) The court's refusal to make findings thus extended beyond this order to Husband's constitutional objections, and the court identified *this Court* as the condition on which findings would ever be supplied. That is the same defect that voids the order under review, stated as a practice.

33. The pattern continued at the concluding June 10 session, on the record from which the order under review issued. Immediately after the court sustained Wife's objection to Husband's requests for judicial notice without making findings ("At this time I'm going to sustain the objection to the request for judicial notice on those matters"), the following exchange occurred: (June 10 Tr. 22:17-19; App. p. 304.)

MR. HANSON: Will you make any findings of fact, Your Honor, or is the plan just to ignore all of the facts that require you to do the opposite of what you want to do?

THE COURT: I'm sorry, I'm not sure I understand that statement?

(June 10 Tr. 22:20-25; App. p. 304.)

Husband also read the court's April 17 statement ("I can make the ruling without findings of fact. And if the Second DCA says I need to find facts, then I'll do so") back into the June 10 record. The court did not correct, qualify, or retract it. (June 10 Tr. 23:25–24:15; 25:4-5; App. pp. 305-307.) Fifteen days later the order under review issued, without findings.

G. The hearings, the quashed witnesses, and the incomplete record

34. Disclosure regarding the record. The guardian ad litem motion was heard over three days: April 17, May 29, and June 10, 2026. **Certified transcripts of all three are in the appendix.** The June 10 transcript (Tr. pp. 1–119) was certified July 22, 2026. Its cover recites that the June 10 session was a continued evidentiary hearing, and the court stated on the record that the hearing was continued from the April 17 and May 29 sessions. (June 10 Tr. 5:1-2; App. p. 291.) **Every statement in this petition about what was said, offered, or testified to is limited to the three certified transcripts identified.**

35. One defect of the June 10 transcript is disclosed for the Court's benefit: the reporter intermittently attributes statements of Husband to "MS. HANSON." Wife gave no sworn testimony on June 10, so the misattribution is apparent from the face of the transcript. Every June 10 quotation in this petition has been verified, for wording and speaker, against the rendered pages of the certified transcript.

36. Across all three days, the only witnesses were the parties themselves; on the concluding June 10 session, the only witness was Husband (continued direct testimony), and Wife's counsel declined examination: "No questions." (June 10 Tr. 89:13; App. p. 333.) Husband's three subpoenaed non-party witnesses were quashed from the bench on May 29, 2026: two of Husband's former attorneys, Vivian Cortes Hodz (Tr. 132:18-22) and Grace Samarkos (Tr. 140:04-16), and the Thirteenth Judicial Circuit's Records Custodian / Trial Court Administrator (Tr. 156:13-20). Two of those bench rulings were reduced to written orders: Doc 325 (Samarkos, June 2, 2026; App. 16) and Doc 326 (Records Custodian / Trial Court Administrator, June 3, 2026; App. 17; Doc 327 is a duplicate docket entry of Doc 326).

37. No written order appears as to the quash of Cortes Hodz's own subpoena (Doc 319, filed May 27, 2026), the same non-party identified above as Husband's former counsel. Her files and her communications with

Wife's counsel bear on the same financial-discovery dispute at issue in this petition; without a ruling, Husband has no way to know what, if anything, of hers remains discoverable. Husband moved for rehearing and reconsideration of the June 2 and June 3, 2026 orders quashing his other witnesses (Doc 332, filed June 15, 2026; App. 18), and that motion remains pending; it likewise records that no order appears on the Hodz quash.

38. The order's own recital does not match the certified record. It recites that the court heard "testimony of the parties **and witnesses**," when across all three certified days only the parties testified. (App. 1.) Husband's three subpoenaed non-party witnesses had been quashed before the May 29 session (§ 36), no other witness was noticed or called, and on the concluding June 10 session the only witness was Husband.

39. The order also recites a hearing on "May 22, 2026," when the continued session convened **May 29, 2026**. Wife has conceded the discrepancy (App. p. 22, § 3), and the record confirms it: subpoenas served May 19 commanded appearance May 29; the court's own orders recite May 29; the June 10 date was "[s]cheduled in open court on May 29, 2026"; and the June 10 transcript itself recites that the hearing was continued from April 17 and May 29, with no May 22 session. Both

discrepancies are consistent with a recital drawn from a superseded notice of hearing rather than from the record of what occurred.

40. The June 10 session closed the record on which the order issued. The court concluded: "I will take it under advisement and I'll issue a ruling shortly." (June 10 Tr. 117:21-23; App. p. 347.) The order under review issued fifteen days later, on June 25, 2026, making no finding of fact about either child (§§ 7–8).

41. Several requests that the court examine the record before it were never ruled on. Two motions asked the court to review the recording of the April 4, 2025 hearing on this same motion (Docs 280, 284; App. 20-21). The only judicial paper addressing either checked "The matter is not an emergency and should be handled in the normal course," leaving unchecked the adjacent "legally insufficient on its face and is denied" (Doc 285; App. 22). At the concluding session the court confirmed the review had not occurred: "MR. HANSON: Did you review the video of the April 4th, 2025 hearing? THE COURT: I did not." (June 10 Tr. 14:10-12; App. p. 298.)

42. Husband's motion for the recording of hearings (Doc 245), which the court's own order had calendared (Doc 247; App. 23), was likewise never ruled on.

43. A third category was denied without findings: Husband's requests for judicial notice (Docs 303–305) were denied from the bench on June 10 ("At this time I'm going to sustain the objection to the request for judicial notice on those matters"), with no written order and no findings (June 10 Tr. 22:17-19; App. p. 304), in the exchange set out at ¶ 33. Whether the absence of findings reflects a record that could not support them, or a record the court declined to complete, is a question these requests frame; Husband does not ask this Court to decide them.

III. RELIEF SOUGHT

44. Husband asks this Court to quash the June 25, 2026 order.

IV. ARGUMENT

Certiorari requires a departure from the essential requirements of law causing material injury for the remainder of the case that cannot be corrected on post-judgment appeal; the latter two together are irreparable harm and present a threshold jurisdictional question. Vericker v. Powell, 406 So. 3d 939, 943–44 (Fla. 2025).

A. Irreparable harm

45. The order sets in motion the entry of a new party by operation of **statute**. Section 61.401 provides that "[t]he guardian ad litem **shall be a**

party to any judicial proceeding from the date of the appointment until the date of discharge." The order under review grants the motion and requires the parties to nominate a guardian within ten days, providing that silence waives input into the selection. Husband submitted nominees within that period.

46. On July 23, 2026, the trial court appointed Alexa A. Rodriguez, Esq. as guardian ad litem, directed a retainer of \$6,000 within three days divided equally between the parties, and set her hourly rate at \$325. (App. 35.) The guardian is therefore a party by operation of law, and the investigation the order authorizes may proceed at any time. Once she interviews the children and collects their records, no appeal can undo it. Certiorari exists for precisely this interval: after the departure, and before the intrusion is complete.

47. The order authorizes an investigation of the children. Section 61.401 appoints the guardian as "next friend of the child, **investigator or evaluator**." Wife's counsel described the object at the hearing that produced this order: Husband's objection was "a smoke screen ... because at the end of the day **Mr. Hanson doesn't want anybody talking to his kids.**" (May 29 Tr. 106:24–107:04; App. pp. 146-147.)

48. In closing argument at the concluding June 10 session, Wife's counsel described the object again, in his own words: "why is he terrified of a guardian ad litem **talking to these children?** Why is he concerned about a psychologist or a therapist **talking to the children?**" (June 10 Tr. 101:19-22; App. p. 339.) He confirmed the investigation's reach into the children's records (the guardian is "to get the records that they deem appropriate from the providers that they deem appropriate"). (June 10 Tr. 101:4-8; App. p. 339.) He asked the court to appoint a specific psychologist, Dr. James Flens, framing "the physical and mental health of a parent" as within the guardian's charge. (June 10 Tr. 106:8-9; 104:12-17; App. pp. 342, 344.) What the order sets in motion is not inference: interviews of the children and collection of their providers' records, by a psychologist, is the relief Wife's counsel described on the record that produced the order.

49. That cannot be undone once it happens. These children have been thriving in a stable, equal-timesharing arrangement (¶ 6; June 10 Tr. 58:10-11; App. p. 319); the order draws them into their parents' conflict over whether that arrangement should continue. A favorable report does not undo the interview. This is the posture in which Florida courts grant certiorari from orders compelling intrusion into private matters. *Childs v. Cruz-Childs*, 353 So. 3d 119, 121 (Fla. 2d DCA 2022) (quoting *Ludwigsen*

v. Ludwigsen, 313 So. 3d 709, 712 (Fla. 2d DCA 2020)); *Wicky v. Oxonian*, 24 So. 3d 571, 572 (Fla. 2d DCA 2009).

50. The content of that intrusion was placed before the trial court in opposition to this very motion. On April 1, 2025, in opposition to the pending guardian ad litem and psychological-evaluation motions, Husband filed a 2021 article by Rachel A. Elovitz, a family lawyer of twenty-four years who **serves as a guardian ad litem and child advocate**. (App. 24; Doc 169.) Husband offers it not as authority but as a description, by a practitioner of the office, of what appointment of an "investigator" under section 61.401 ordinarily entails:

Of the many roles in which a GAL can be tasked, the most common is that of investigator, which typically includes **a review of the minor child's records (e.g., academic, attendance, medical), meeting with the child, observing the child with each parent, and interviewing lay and expert witnesses familiar with the child and/or the parent-child relationship**. The GAL then consolidates the information in a written report and submits it to the Court with custody and parenting time recommendations. (Doc 169 at 2; App. p. 266.)

51. The same source identifies why the resulting injury is not correctable later. It notes that "courts tend to defer to a GAL's findings, at times rubber stamping them, even when the case involves issues or allegations beyond the ken or expertise of the GAL"; that a report may rest on statements "imprecise, mistaken, false, or even fabricated — particularly when there is no opportunity to cross-examine"; and that: (Doc 169 at 3; App. p. 267.)

A judge is presumed to be able to separate "the wheat from the chaff," but **once a judge has heard the "chaff," it may be hard to unring that bell.**

52. It also identifies a harm running to the children rather than to Husband: "Children may also be concerned about speaking freely once made aware that **communications with a GAL are not confidential.**" (Doc 169 at 3; App. p. 267.)

53. Husband acknowledges that the same article describes guardian ad litem appointments as "generally considered valuable" and observes that a guardian may bring information before a court "untainted by the parochial interests of the parents." (Doc 169 at 2; App. p. 266.) He does not offer the article as a verdict on the institution. He offers it because it is in this record. It describes concretely what the order sets in motion. And a court that

appoints an investigator over two children, on findings that state no fact about either, has not weighed any of it.

54. In *Bailey v. Bailey*, No. 4D15-609 (Fla. 4th DCA Sept. 9, 2015), the Fourth District took certiorari jurisdiction over an order appointing a **social investigator** in a post-dissolution family case. *Bailey* took jurisdiction because the orders compelled "production of confidential records and ... a compulsory examination pursuant to Florida Rule of Civil Procedure 1.360," and it quashed the social-investigator appointment on inadequate-notice grounds while leaving the compelled evaluation undisturbed.

55. The order here compels no examination of Husband, and Husband does not claim *Bailey* is on all fours. He cites it for the narrower point it establishes: certiorari jurisdiction reaches an order appointing an investigator in a family case. He rests the irreparable-harm showing on section 61.401's own terms: a statutory **party**, vested with **investigator** authority over the children, whose intrusion into the children's lives is complete on execution.

56. Husband does **not** rest irreparable harm on the cost provision. Monetary loss is ordinarily remediable on appeal. This case is different. Husband has been self-represented since December 2024, and the cost of the appointment falls on a litigant who has been without counsel

throughout. Further, the time and effort required to protect his family's interests in the present case requires Petitioner working 70-80 hours per week on this and related cases, precluding him from earning income to pay for this unnecessary and retaliatory intrusion. The financial burden is therefore less readily remediable than in the ordinary case.

57. What sharpens the harm is what the order does not say. An investigation of two children was ordered on findings that state no fact nor concern about either child. The certified record includes Wife's own testimony that the school records showed "[n]othing out of the ordinary that would warrant intervention on that level, and I haven't said there should be." (May 29 Tr. 36:10-12; App. p. 123.) This is the most objective evidence available; Wife reported nothing warranting intervention.

58. A second objective source went unused. Husband proposed that the children's teachers, who see the children daily, complete child-wellness questionnaires. Wife and her attorney specifically objected without pointing out any reason for the objection. Husband placed the point on the record at the hearing that produced this order. (Apr. 17 Tr. 119:6-8; 125:21-25; App. pp. 68, 74.)

59. Husband argues that the reason for the objection was to suppress evidence of how well the children are doing, so as to continue the

retaliation he has consistently alleged. His interrogatory then asked Wife to explain seeking the appointment "while you simultaneously refuse to agree to the Respondent's proposal to have the children's teachers—who observe and interact with them daily—complete basic child wellness questionnaires." (Doc 277, No. 10; App. p. 415.) Her sworn answer objected to the question's wording on privilege and mischaracterization grounds. It did not deny that she had declined. (Doc 292, Answer No. 10; App. p. 420.)

60. The court's inquiry into who would pay preceded any finding about what the children needed. Wife asked that Husband bear the cost, yet testified she had never looked into what a guardian ad litem costs. (May 29 Tr. 40:19-23; App. p. 126.) She also testified to the purpose the appointment served in her own case: "I think the guardian ad litem is my best way of presenting to the Court why it shouldn't it be 50/50." (Apr. 17 Tr. 211:6-8; App. p. 82.)

61. An appointment made for children's benefit was sought as one party's evidence-gathering vehicle, over the other party's objection that it is entirely retaliatory and obstructive in nature. Its cost was allocated between the parties before any finding about the children was made. Section 61.401's

finding requirement is the only thing distinguishing the two. It is not a formality.

B. The appointment issued before Husband could complete the discovery at the core of the dispute, or develop the record on Wife's motive to obstruct and retaliate

62. Husband does not contend that the denial of discovery is, standing alone, irreparable harm; ordinarily a party wrongly denied discovery can be given a new hearing. The combination is what matters here. As set out in Facts §§ B and E, Husband's own financial discovery, first sought in Doc 22 in May 2024, was left unresolved, while the appointment it was later quoted to support was carried to a final order. He was thus left without the evidence he had identified as necessary to defend the motion.

63. The consequences (a statutory party, and interference in his children's lives) execute on entry and cannot be given back. Where the loss of discovery "effectively eviscerates a party's claim, defense, or counterclaim," certiorari lies. *Giacalone v. Helen Ellis Mem'l Hosp. Found., Inc.*, 8 So. 3d 1232, 1234 (Fla. 2d DCA 2009).

64. Candor as to a prior proceeding. Husband previously sought certiorari review concerning financial-disclosure compliance: the predecessor judge's February and March 2025 orders excusing Wife's

deficient mandatory-disclosure certificates (No. 2D2025-0681). This Court dismissed that petition without written opinion on September 12, 2025; the mandate issued February 19, 2026. Husband does not renew it, and does not challenge any discovery ruling here. The discovery history is recited only because the appointment now under review was granted while Husband's separate, still-pending motion to compel (Doc 22; App. 4) remained unresolved; the injury asserted is the appointment, not any discovery order.

65. The connection was not raised for the first time on review; Husband stated it to the trial court repeatedly, on the record:

MR. HANSON: Can't we just place a requirement on them that they actually have to produce three years. **That will make the guardian ad litem issue so much easier.** (Apr. 17 Tr. 360:20–361:03; App. pp. 93-94.)

THE COURT: Mr. Hanson, I've addressed that issue.

MR. HANSON: ...you're pushing an invasive remedy on the children before you'll deal with the discovery I requested two years ago. There's no explanation for doing that under Florida law. (May 29 Tr. 250:7-11; App. p. 170.)

And on February 3, 2026 he explained why the discovery had to come first: he needed the financial discovery "to make my argument on the guardian ad litem." (Feb. 3 Tr. 18:6-14; App. p. 271.) He preserved the same point at the concluding June 10 session: the discovery "that's critical to my defense on the guardian ad litem" remained outstanding. (June 10 Tr. 10:15-16; App. p. 295.)

66. The asymmetry is the point. Wife's pleaded grounds for the appointment were quoted from Husband's own filing (Facts § B; Apr. 17 Tr. 120:18–121:08; App. pp. 69-70), while the relief that same filing sought was deferred and never adjudicated (Facts § E; Argument § G). A guardian ad litem was then appointed on findings that state no fact about either child. Whatever a later appeal could restore, it cannot restore the hearing that never happened, on the record that was never developed. And it cannot un-appoint a party or un-interview two children in the meantime. It cannot undo the conflict into which the children will be drawn should this order stand.

67. Wife may urge that Husband received equal hearing time. Equal hearing time on the guardian ad litem motion did not reach the matters the court deferred. That motion, filed December 13, 2024, was heard across three days (April 17, May 29, and June 10, 2026) and carried to a final

order (Doc 337, entered June 25, 2026; App. 1). Husband's financial-discovery motion, first sought in Doc 22 in May 2024, was heard on April 17, where the court ordered three years of production but reserved Wife's objections for a separate hearing that was never set (Argument § G, ¶¶ 82–86). His renewed non-party subpoenas (Docs 147–148, served February 28, 2025; App. 12-13) drew an objection (Doc 149; App. 14) that, as of this filing, has not been ruled on.

68. The later-filed appointment motion reached a final order; the earlier-filed discovery did not. Equal minutes at one hearing did not put into the record the financial evidence Husband told the court his defense required (¶ 62). It did not supply the finding section 61.401 requires.

C. The best-interest recital is a statement of belief unsupported by any finding of fact or by the record at large

69. A two-page order appointing a guardian ad litem for two children contains no finding of fact about either child. Not their needs. Not their circumstances. Not their condition.

70. Section 61.401 conditions the power on a finding: "**if the court finds it is in the best interest of the child**, the court may appoint a guardian ad litem." The finding is the condition on which the authority exists. Wife's counsel read the condition aloud in closing argument at the concluding

session: "If the Court finds it's in the best interest of the child or children, the court may appoint a guardian ad litem to act as next friend of the child, investigator or evaluator, not as attorney or advocate." (June 10 Tr. 90:9-13; App. p. 334.) Fifteen days later, the order issued without the finding.

71. Husband does not contend the order omits the words. Finding C recites that "[t]he Court **believes**" the appointment would be in the children's best interest. The contention is that the recital is untethered: it identifies no testimony, no exhibit, and no fact concerning these children, and it states a belief rather than a finding. A statutory condition satisfied by reciting its own language is not a condition.

72. Based on section 61.401 and on the principle, settled for court-ordered examinations, that failure to make required findings is itself a departure, Husband submits that relief is warranted. *Oldham v. Greene*, 263 So. 3d 807 (Fla. 1st DCA 2018); *Asteberg v. Russell*, 144 So. 3d 606 (Fla. 2d DCA 2014); *Riley v. Riley*, 915 So. 2d 734 (Fla. 2d DCA 2005); *Ruiz v. D'Arbelles*, No. 3D25-2192 (Fla. 3d DCA Feb. 11, 2026).

73. Husband anticipates reliance on *Russenberger v. Russenberger*, 639 So. 2d 963, 966 (Fla. 1994), for the proposition that a chapter 61 court need not comply with rule 1.360 in ordering an evaluation. That principle

relieves the court of the *rule's* requirements; it does not relieve the court of the *statute's* express condition. Section 61.401 supplies its own predicate.

D. Finding B states no fact about either child, and it inverts the inquiry

74. Finding B, the order's only finding referring to Husband, states that he "stated multiple times that he is not a bad parent and in fact, is an **excellent parent.**"

75. Whatever Husband said about himself, Finding B states no fact about either child; it recites only a characterization of the parent's own view of his parenting. What the certified record shows Husband saying about the children is that they are "thriving and excelling in every aspect of life" and, on June 10, "thriving happy, healthy kids." (Apr. 17 Tr. 125:14-17; June 10 Tr. 58:10-11; App. pp. 74, 319.)

76. The certified record also shows the court itself linking a parent's effort to demonstrate his fitness to the appointment of a guardian:

MR. HANSON: I'm in a position where I have to prove I'm a good father on some level. And there's not a good way to do it. People don't want to come in here and testify.

MR. HANSON: Like there's -- how do you prove that you're a good dad? How do you prove that your kids are healthy?

THE COURT: I can tell you sometimes in these cases we have guardians. (Apr. 17 Tr. 127:14-17; 332:1-5; App. pp. 76, 87.)

77. The inversion was Wife's stated position long before it became a finding. Writing to Husband on February 12, 2025, Wife's counsel argued:

If your children are thriving doing equal time-sharing as you have indicated, then it would seem to me that you would welcome the appointnemt [sic] of a Guardian Ad Litem to prove what you have said. (Doc 122 at 5-6; App. p. 282.)

78. The same letter identified the purpose: "if a Guardian Ad Litem is appointed now, they could do enough work to have an opinion regarding whether the Court should grant or deny **Wife's Motion for Psychological Examination of Husband.**" (Doc 122 at 5; App. p. 283.) Husband offers this as what Wife sought, not as what the court found.

79. Finding B is defective in two respects. **First**, it states no fact about either child. It is a characterization of what Husband said about himself. Section 61.401 conditions the appointment on a finding about the *child*, not about the parent's self-assessment. **Second**, it inverts the inquiry: a parent's assertion that he parents well is not evidence that his children require a guardian. Used as the reason to appoint one, it makes the defense of the motion the ground for granting it.

80. Read together with the exchange at Apr. 17 Tr. 332:1-5, the finding describes a proceeding in which a parent who denies the need for a guardian has thereby supplied the reason for one. That is not a standard any litigant can satisfy. It is not a finding section 61.401 authorizes.

E. The omission of findings was a stated method

81. The absence of findings is deliberate. As set out in Facts § F, the court stated on the record that it would make findings only if this Court required it, and applied that same approach to Husband's constitutional objections.

Wife's response below characterizes the absence of findings as

"Respondent's dislike of the Order's wording" (App. p. 23, ¶ 4); the record forecloses that. A failure to make a finding the statute expressly requires is itself a departure from the essential requirements of law, and where the court has identified this Court as the sole condition on which it will supply findings, the departure is not curable below. Husband takes the trial court at its word.

F. The court announced a standard and then departed from it

82. On April 17, 2026 Wife asked the court to admit a financial affidavit and rule without hearing from Husband, noting the motion "was filed 490 days ago." The court declined: (Apr. 17 Tr. 354:6-7; App. p. 90.)

THE COURT: I'm not comfortable making a ruling without giving Mr. Hanson the opportunity to testify in his own defense of the motion. (Apr. 17 Tr. 354:14-17; App. p. 90.)

83. Six weeks later the court quashed all three of Husband's non-party witnesses on stated grounds of relevance. Asked whether any other basis existed on which he might be heard:

MR. HANSON: Any other basis that I can present my argument to you on?

THE COURT: No. (May 29 Tr. 141:16-18; App. p. 157.)

84. Husband had received the quash motions one to two days before the hearing and had no opportunity to respond in writing. (May 29 Tr. 101:20-23; App. p. 143.) A court that will not rule without hearing a party's defense, and then forecloses that defense, has departed from the standard it set.

G. The discovery motion serving as the improper basis for the appointment was heard but never resolved

85. As Facts § B establishes, every factual predicate pleaded in the guardian ad litem motion was a quotation from Husband's own May 16, 2024 filing (Doc 22; App. 4): his health and treatment disclosures (Doc 22 ¶¶ 21–22; App. pp. 28-29) and his acknowledgment that he had "momentarily refused" to pay certain expenses "in part out of anger and

frustration" (Doc 69 ¶ 6; App. p. 99). The motion pleads no factual allegation about either child drawn from any other source; what exists in writing is opposing counsel quoting Husband's own filing back at him several months later.

86. On February 3, 2026, Husband asked that the discovery motion be heard before the guardian ad litem motion. The court agreed ("Okay. We'll do that first"). (Feb. 3 Tr. 18:6-14; App. p. 271.) The court did not set that hearing. It declined for a stated reason:

THE COURT: I've heard the request before. I asked Mr. Davis if he would agree to that and he said no so --

THE COURT: But I want his consent...

THE COURT: I prefer to coordinate between the parties and the counsels with regards to hearings and Mr. Davis has not agreed to that. (Feb. 3 Tr. 18:22-23; 21:5-17; App. pp. 271, 274.)

87. A trial court's control of its own calendar is not subject to a litigant's consent.

88. The consequence is the departure. When Doc 22 was reached on April 17, the court ordered three years of mandatory disclosure but resolved nothing: "I'm not going to preclude any objections to that. You can make your objections and we'll set that for a hearing specifically." (Apr. 17 Tr.

115:3-12; App. p. 64.) Counsel confirmed the ruling was on Doc 22. (Apr. 17 Tr. 116:9-11; App. p. 65.) **That objection hearing was never set.**

89. So the motion whose paragraphs supplied every pleaded ground for this appointment was heard, left unresolved, and remains unresolved, while the appointment it was quoted to support reached a final order.

H. The record the court declined to complete

90. As set out in Facts § G, the motions asking the trial court to review the April 4, 2025 recording (Docs 280, 284; App. 20-21), the requests for judicial notice (Docs 303–305), and the motion for recording of hearings (Doc 245, calendared by the court's own order, Doc 247; App. 23) were never ruled on. Husband does not ask this Court to decide those motions. They bear on one question: whether the absence of findings reflects a record that could not support them, or a record the court declined to complete. See Husband's contemporaneously filed motion regarding the April 4, 2025 recording.

V. CONCLUSION

91. Two children are to be interviewed by a court-appointed investigator, who becomes a party to this case by operation of statute, on the authority of a two-page order containing no fact about either of them. The statute

conditions the appointment on a finding the order does not make in substance. The judge who entered it stated in advance that he would supply findings only if this Court required them.

92. For 800 days, Husband has remained consistent with his sole objective in the litigation, reasonable financial discovery relating to marital assets/income Wife kept separately during the marriage. (Doc 22, May 16, 2024; App. 4). For more than two and a half years, the parties have shared equal time with their children as they continued to thrive. The order under review overrides the one thing Husband asked the court not to do, the involvement of his children, while the one thing he has asked for remains unresolved.

93. Husband respectfully requests that this Court grant the petition and quash the June 25, 2026 order.

Respectfully submitted,

s/Chris Hanson

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CERTIFICATE OF COMPLIANCE

Arial 14-pt (Fla. R. App. P. 9.045); word count 7,932.

CERTIFICATE OF SERVICE

I certify that a copy was served via the Florida Courts E-Filing Portal on July 25, 2026, on Wife, the Respondent in this proceeding (the Petitioner below), self-represented, Scott Davis having withdrawn as counsel by order: **Sarah Sorgie Hanson, Esq.** (Fla. Bar No. 065956), P.O. Box 22376, Tampa, FL 33622; flcourts@aainsco.com; sahanson@aainsco.com.

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